

Amendment No. 1 to SB2220

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 2220*

House Bill No. 2262

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 37-5-601, is amended by adding the following as a new subdivision (2):

(2) "Caregiver" means the same as defined in § 37-1-102 or § 37-5-501.

SECTION 2. Tennessee Code Annotated, Section 37-5-604, is amended by deleting the section and substituting instead:

(a) Upon receipt of a report of harm pursuant to § 37-1-403, including a report of harm alleging facts that involve a caregiver, the department must make an initial screening decision using an approved screening instrument. The screening instrument must be developed by the department. If the report does not allege that the child has been harmed or that the child has been sexually abused, then after reviewing the information available and using the screening instrument, the department must determine whether the child is at risk of maltreatment. If the child is at risk of maltreatment, then the department must determine whether the appropriate level of intervention is:

- (1) Investigation pursuant to chapter 1 of this title;
- (2) Assessment of the child, family, and caregiver's need for and referral to available community-based public or private services;
- (3) Referral for available community-based public or private services without assessment or investigation; or
- (4) No further action by the department.

(b) If the department receives a report under chapter 1, part 4 or part 6 of this title, that alleges a child has actually been harmed or sexually abused, then the department must investigate such report, with child protective services investigators, to the extent that investigators are available, pursuant to chapter 1, part 4 or part 6 of this title. The department also may proceed at the same time with assessment under this section, including for reports of harm alleging facts involving a caregiver.

(c) If the department determines that an assessment of the child, family, and caregiver is appropriate, then the department must give the parents, guardian, or others exercising parental or caregiver authority a written and oral explanation of the procedure for assessment of the child, family, and caregiver and its purposes. The assessment of the child, family, and caregiver and identification of service needs must be based on information gathered from the family and other sources. The department must have such face-to-face contact with the child, parents, other family members, and other sources, as is necessary to make the assessment reliable. If the parent is not present during contact with a child, then the child's parent or guardian shall be contacted as soon as possible following contact with the child. The assessment of the child, family, and caregiver must be completed within ninety (90) days. The assessment of the child, family, and caregiver must be in writing and must be completed in accordance with department policy or regulations.

(d) Upon completion of the assessment of the child, family, and caregiver, the department must consult with the family and caregiver about available community-based public or private services to address the family and caregiver's needs. When appropriate, families and caregivers must be offered services through the department, other public agencies, or community-based private agencies, which may include faith-based organizations, to promote meeting the needs of the family and caregiver. The department shall not require a family or caregiver to participate in available public or private community-based services that it offers the family or caregiver. If the family or

caregiver does not cooperate with the provision of community-based public or private services or provide alternative services of the family's or caregiver's own to meet such needs, then the department must assess whether further steps should be taken to carry out the purposes of this part. If a family or caregiver that declines services that are offered to the family or caregiver does not provide adequate alternative services of its own, then the department must inform the parents or caregiver that the actions in declining services may be considered in future action by the department.

(e) If the department determines, under subsection (a), that the appropriate level of intervention is referral for available community-based public or private services without assessment or investigation, then the department may refer the family or caregiver for preventive community-based public or private services. Families or caregivers have the option of declining services offered as a result of a report of harm that did not result in an investigation or assessment of the child, family, and caregiver. If the family or caregiver declines the services, then the case must be closed, unless the department determines that sufficient cause exists to redetermine the case as one that needs to be investigated or assessed. Any family or caregiver that declines services offered to them must be informed that the actions in declining services may be considered in evaluating any future reports of harm received by the department.

(f) The department must commence an immediate investigation, if, at any time during the provision of services under this part, the department determines that an investigation is required by chapter 1, part 4 or part 6 of this title, and that investigation must be conducted under those provisions. The district attorney general and law enforcement officials must be informed of the investigation as required under those provisions.

SECTION 3. This act takes effect January 1, 2027, the public welfare requiring it.